

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Casey McCann	Team: Squad #14	CCRB Case #: 201903480	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 02/05/2019 11:46 AM, Tuesday, 04/23/2019 10:30 AM, Tuesday, 04/23/2019 12:34 PM	Location of Incident: § 87(2)(b)	Precinct: 62	18 Mo. SOL 8/5/2020	EO SOL 3/22/2021	
Date/Time CV Reported Wed, 04/24/2019 9:33 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 04/24/2019 9:33 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. LT Jason Luciano	00000	932929	062 PCT
2. POM Michael Nesterwitz	08478	961002	062 PCT
3. POM Christophe Mattar	14279	966199	062 PCT
4. POM Enrique Rodriguez	21304	907171	062 PCT
5. POM Christophe Matthews	20636	963145	062 PCT
6. SGT Heriberto Hernandez	01584	932167	062 PCT

Officer(s)	Allegation	Investigator Recommendation
A.LT Jason Luciano	Abuse: On February 5, 2019, at approximately 11:46 a.m., at § 87(2)(b), in Brooklyn, Lieutenant Jason Luciano forcibly removed § 87(2)(b) to the hospital.	§ 87(2)(b)
B.POM Christophe Mattar	Abuse: On April 23, 2019, at approximately 10:30 a.m., at § 87(2)(b), in Brooklyn, Police Officer Christopher Mattar failed to provide § 87(2)(b) with a business card.	§ 87(2)(b)
C.POM Enrique Rodriguez	Abuse: On April 23, 2019, at approximately 10:30 a.m., at § 87(2)(b) in Brooklyn, Police Officer Enrique Rodriguez failed to provide § 87(2)(b) with a business card.	§ 87(2)(b)
D.SGT Heriberto Hernandez	Abuse: On April 23, 2019, at approximately 12:34 p.m., outside of § 87(2)(b) in Brooklyn, Sergeant Heriberto Hernandez stopped § 87(2)(b)	§ 87(2)(b)
E.SGT Heriberto Hernandez	Abuse: On April 23, 2019, at approximately 12:34 p.m., outside of § 87(2)(b) in Brooklyn, Sergeant Heriberto Hernandez failed to provide § 87(2)(b) with a business card.	§ 87(2)(b)

Officer(s)	Allegation	Investigator Recommendation
F.POM Christophe Matthews	Abuse: On April 23, 2019, at approximately 12:34 p.m., outside of § 87(2)(b) in Brooklyn, Police Officer Christopher Matthews failed to provide § 87(2)(b) with a business card.	
G.POM Michael Nesterwitz	Abuse: On April 23, 2019, at approximately 12:34 p.m., outside of § 87(2)(b) in Brooklyn, Police Officer Michael Nesterwitz failed to provide § 87(2)(b) with a business card.	
§ 87(2)(g), § 87(4-b)		

Case Summary

On April 24, 2019, § 87(2)(b) filed this complaint with the CCRB via telephone.

On February 5, 2019, at approximately 11:46 a.m., at § 87(2)(b) in Brooklyn, Lieutenant Jason Luciano of the 62nd Precinct forcibly removed § 87(2)(b) to the hospital (**Allegation A: Abuse of Authority**, § 87(2)(g)).

On April 23, 2019, at approximately 10:30 a.m., at § 87(2)(b) in Brooklyn, Police Officer Christopher Mattar and Police Officer Enrique Rodriguez, both of the 62nd Precinct allegedly failed to provide § 87(2)(b) with their business cards (**Allegations B and C: Abuse of Authority**, § 87(2)(g)).

On April 23, 2019, at approximately 12:34 p.m., Sergeant Heriberto Hernandez, Police Officer Christopher Matthews, Police Officer Michael Nesterwitz, and Lieutenant Luciano, all of the 62nd Precinct, responded to a call regarding a dispute between § 87(2)(b) and his neighbor, Jacquelyn Neary, outside of § 87(2)(b) in Brooklyn. Sgt. Hernandez stopped § 87(2)(b) (**Allegation D: Abuse of Authority**, § 87(2)(g)) and failed to provide § 87(2)(b) with a business card (**Allegation E: Abuse of Authority**, § 87(2)(g)). PO Matthews and PO Nesterwitz also failed to provide § 87(2)(b) with business cards (**Allegations F and G: Abuse of Authority**, § 87(2)(g)).

§ 87(2)(g), § 87(4-b)

§ 87(2)(b) was not arrested or summonsed during these incidents.

Cell phone footage from § 87(2)(b) and body-worn camera footage was obtained for the incident on April 23, 2019 at 12:34 pm. and will be discussed in further detail below. There is no other video evidence in this case.

Findings and Recommendations

Allegation (A) Abuse of Authority: On February 5, 2019, at approximately 11:46 a.m., at § 87(2)(b), in Brooklyn, Lieutenant Jason Luciano forcibly removed § 87(2)(b) to the hospital.

The investigation established the following facts:

On February 5, 2019, at approximately 11:46 a.m., § 87(2)(b) who suffers from bipolar disorder, called 911 to complain about the way police officers handled an incident with § 87(2)(b) and her boyfriend, Jovan Morales. During that call, § 87(2)(b) threatened to kill his neighbor and asked the 911 operator if he would be arrested if he did so. Police officers, including Lieutenant Luciano, responded to § 87(2)(b)'s home, located at § 87(2)(b). § 87(2)(b) was known to the 62nd Precinct as an emotionally disturbed person and Lieutenant Luciano had encounters with § 87(2)(b) before. § 87(2)(b) was ultimately transported via ambulance to § 87(2)(b) and was discharged from the hospital the same day.

In the audio of the 911 call, § 87(2)(b) tells the operator, "If this occurs again, because I suffer from bipolar disorder, will I go to jail if I kill him?" The 911 operator responds, "If you kill anybody, of course you will." § 87(2)(b) continues to complain about his neighbor entering his apartment and says, "Well at this point, I'm fearing for my life, so if he enters my apartment, like I said he's not a tenant, I'm going to kill him. That's final. Like I said, I'll deal with the consequences" (see time stamp on player <<02:06 – 02:46>>) (BR 01).

Both § 87(2)(b) (BR 02) and his wife, § 87(2)(b) (BR 03), testified that § 87(2)(b) had made a threat to kill his neighbor. § 87(2)(b) said that he was suffering from a manic episode when he contacted 311 via telephone and threatened to kill his neighbor. When police officers arrived, he apologized for threatening to kill his neighbor and told the officers he should have never said it. Lieutenant Luciano told § 87(2)(b) he had to go to the hospital. § 87(2)(b) originally refused, but eventually agreed to go when Lieutenant Luciano told him he had no choice.

Lieutenant Luciano (BR 04) testified that the call originally stated that § 87(2)(b) had made threats against police officers. When Lieutenant Luciano arrived, Police Officers Thomas Mercado and Rafael Zaldivar, both of the 62nd Precinct, were already on scene. § 87(2)(b) was jerky, nervous, and continued to move around. Lieutenant Luciano asked § 87(2)(b) if he had made any threats against police officers. § 87(2)(b) told Lieutenant Luciano that he has a right to defend himself if his neighbors break into his house and “if they die, they die.” Lieutenant Luciano then determined that § 87(2)(b) was making threats against his neighbor, not members of service. Lieutenant Luciano spoke to § 87(2)(b) who said that § 87(2)(b) was in a manic state and unmedicated. Due to § 87(2)(b)'s statements and behavior, Lieutenant Luciano deemed § 87(2)(b) a threat to himself and others, and called for an ambulance. When the ambulance arrived, the EMTs evaluated § 87(2)(b) and concurred that § 87(2)(b) should be sent to the hospital for further evaluation.

§ 87(2)(b)'s medical records from § 87(2)(b) stated that § 87(2)(b) told medical staff he was “feeling paranoid, was calling lawyers and Internal Affairs, and said, ‘If this person tries to enter my apartment again, I will kill him’” (see medical records).

Police officers must take into custody any person who appears mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others. NYPD Patrol Guide Procedure 221-13 (BR 05).

§ 87(2)(g)

Allegation (B) Abuse of Authority: On April 23, 2019, at approximately 10:30 a.m., at § 87(2)(b), in Brooklyn, Police Officer Christopher Mattar failed to provide § 87(2)(b) with a business card.

Allegation (C) Abuse of Authority: On April 23, 2019, at approximately 10:30 a.m., at § 87(2)(b), in Brooklyn, Police Officer Enrique Rodriguez failed to provide § 87(2)(b) with a business card.

§ 87(2)(b) did not allege that he had any interaction with officers on April 23, 2019 at approximately 10:30 a.m.

§ 87(2)(b) testified that she was home with § 87(2)(b) and her son when § 87(2)(b)'s son opened the door. PO Rodriguez and PO Mattar were at the door and asked § 87(2)(b)'s son if they could come in to speak with him because they received a complaint from the neighbor across the hall about an individual kicking a door. § 87(2)(b) asked the officers, “Why are you here?” and asked the officers for their business cards, but they walked away without providing the card.

PO Mattar (BR 06) testified that he and PO Rodriguez responded to a 911 call regarding a dispute among neighbors, in which the caller, § 87(2)(b) said her neighbor was banging on her door and harassing her. When PO Mattar and PO Rodriguez arrived, they spoke to the 911 caller, who said that § 87(2)(b) bangs and kicks her door. The officers ultimately filed a UF-61 for harassment, as they did not observe any damage to the door and did not observe § 87(2)(b) engage in the alleged behavior. As the officers were leaving the building, a male individual identified to be § 87(2)(b)'s son said, “She called 911 on my dad again?” PO Mattar did not knock on § 87(2)(b)'s door or speak with § 87(2)(b) or § 87(2)(b) during the incident and therefore did not refuse to provide § 87(2)(b) with a business card.

PO Rodriguez (BR 07) had no recollection of this incident.

§ 87(2)(g)

Allegation (D) Abuse of Authority: On April 23, 2019, at approximately 12:34 p.m., outside of

§ 87(2)(b) in Brooklyn, Sergeant Heriberto Hernandez stopped § 87(2)(b)

Allegation (E) Abuse of Authority: On April 23, 2019, at approximately 12:34 p.m., outside of

§ 87(2)(b) in Brooklyn, Sergeant Heriberto Hernandez failed to provide § 87(2)(b) with a business card.

The investigation established the following facts:

On April 23, 2019, at approximately 12:34 p.m., Sgt. Hernandez, PO Matthews, PO Nesterwitz, and Lieutenant Luciano responded to a 911 call from a third party. The caller, who was § 87(2)(b) sister, reported that § 87(2)(b) said that § 87(2)(b) has a knife and that § 87(2)(b) has an order of protection against § 87(2)(b). When the officers responded, § 87(2)(b)'s son, § 87(2)(b) § 87(2)(b)'s friend, § 87(2)(b) and § 87(2)(b)'s wife, § 87(2)(b) were outside of § 87(2)(b). § 87(2)(b) tried to walk away, but Sgt. Hernandez told him he could not leave and was being detained. Officers made attempts to contact § 87(2)(b) through her door but were unsuccessful in doing so and therefore left the location approximately 20 minutes later without taking any law enforcement action.

§ 87(2)(b) testified that he was standing outside of his building with his family and § 87(2)(b) smoking a cigarette for approximately 20 minutes before officers arrived. Plainclothes officers asked § 87(2)(b) who he was and what he was doing. § 87(2)(b) responded that he lived at the location and was going to go upstairs. Sgt. Heriberto said, "You're being detained." § 87(2)(b) overheard officers say that § 87(2)(b) called 911 and said § 87(2)(b) had a weapon. None of the officers provided § 87(2)(b) with a business card.

Sgt. Hernandez (BR 08) testified that when he responded to the call, he told § 87(2)(b) that "no one could leave" because the 911 call stated that there was a dispute with a knife among neighbors in the area. Sgt. Hernandez further explained to § 87(2)(b) that until the officers determined what happened and if an arrest needed to be made, § 87(2)(b) could not leave. § 87(2)(b) became agitated and was difficult to speak with thereafter. Sgt. Hernandez interacted with § 87(2)(b) before and therefore was familiar with him. Sgt. Hernandez testified that he did not offer § 87(2)(b) a business card because the radio run involved a dispute and he only responded to see if anyone was injured and determine if an arrest needed to be made.

Sgt. Hernandez's body-worn camera (BR 09-10) begins with Sgt. Hernandez approaching § 87(2)(b) § 87(2)(b)'s friend; and other plainclothes officers standing on the sidewalk in front of § 87(2)(b)'s apartment building. § 87(2)(b) attempts to walk away from the officers and Sgt. Hernandez says, "Nobody's leaving." § 87(2)(b) asks if he is being detained and Sgt. Hernandez says yes (see time stamp on player <<01:04 – 01:13>>).

The EVENT lists that a female caller, § 87(2)(b) sister, reported that § 87(2)(b) told her that § 87(2)(b) has a knife and bat and that § 87(2)(b) § 87(2)(b)-year-old son is at the location (BR 11).

Where a police officer entertains a reasonable suspicion that a particular person has committed, is committing, or is about to commit a felony or misdemeanor, the Criminal Procedure Law authorizes a forcible stop and detention of that person. *People v. De Bour*, 40 N.Y.2d 210 (1976) (BR 12).

At the conclusion of law enforcement activities, such as pedestrian stops where an officer has an individualized, reasonable suspicion that the person stopped has committed, is committing, or is about to commit a crime, officers must offer a business card to such person at the conclusion of any such activity that does not result in an arrest or summons. *New York City Administrative Code* 14-174 (BR 14).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation (F) Abuse of Authority: On April 23, 2019, at approximately 12:34 p.m., outside of § 87(2)(b) in Brooklyn, Police Officer Christopher Matthews failed to provide § 87(2)(b) with a business card.

Allegation (G) Abuse of Authority: On April 23, 2019, at approximately 12:34 p.m. outside of § 87(2)(b) in Brooklyn, Police Officer Michael Nesterwitz failed to provide § 87(2)(b) with a business card.

It is undisputed that § 87(2)(b) asked PO Matthews and PO Nesterwitz for their business cards and they both failed to provide one.

§ 87(2)(b) testified that he asked officers for their names and business cards, but none of the officers provided § 87(2)(b) with this information.

§ 87(2)(b) provided video footage of the incident which he took on his cell phone (BR 15-16). The video begins with plainclothes officers and PO Nesterwitz standing on the sidewalk. § 87(2)(b) narrates that the officers did not present any identification which he requested. § 87(2)(b) approaches PO Nesterwitz who says, “I’m in uniform, bro. My camera’s on, too.” § 87(2)(b) responds, “No, it doesn’t matter. I just need a card. I just need a card. That is my right as a citizen.” PO Nesterwitz says, “We’ll figure that out. Sit down” and does not provide § 87(2)(b) with a business card (see time stamp on player <<00:05 – 00:15>>).

In PO Matthews’ body-worn camera footage (BR 17, 10), which shows § 87(2)(b) standing outside his building, § 87(2)(b) says, “I refuse to let you all abuse me anymore.” PO Matthews is standing in front of § 87(2)(b) and says, “No one is even talking to you.” § 87(2)(b) says, “Are you questioning me? I demand to see identification. A card stating who you are,” and points to PO Matthews. PO Matthews responds, “No one’s even talking to you, guy” (see time stamp on player <<01:55 – 02:05>>).

PO Matthews (BR 18) testified that he did not speak with § 87(2)(b) and § 87(2)(b) never asked him for a business card. Upon reviewing his body-worn camera footage, PO Matthews said he did not interpret § 87(2)(b)’s request as a request for a business card and did not know what § 87(2)(b) was talking about. PO Matthews also testified that he did not think § 87(2)(b) was talking to him.

PO Nesterwitz (BR 19) testified that upon his arrival, § 87(2)(b) was angry that there were officers on scene and he tried to explain that it is procedural for a large amount of officers to respond to calls involving weapons. PO Nesterwitz did not remember if he spoke with § 87(2)(b) further and did not recall if § 87(2)(b) asked him for a business card. PO Nesterwitz reviewed the cell phone footage § 87(2)(b) provided and testified that he “assumed” § 87(2)(b) was asking for a business card, but did not recall if he ever provided him with one.

An officer shall offer a business card to any person requesting identifying information, or provide such information verbally to such person. New York City Administrative Code 14-174.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to three CCRB complaints and has been named a victim in five allegations (BR 20):
 - § 87(2)(b)
 -
 -
 -
- § 87(2)(b) has been party to one other CCRB complaint and has been named a victim in one allegation (BR 23):
 - § 87(2)(b)
- Lt. Luciano has been a member of service for 16 years and has been a subject in two CCRB complaints and five allegations, none of which was substantiated. § 87(2)(g)
- PO Mattar has been a member of service for one year and this is the first CCRB complaint to which he has been a subject.
- PO Rodriguez has been a member of service for 25 years and has been a subject in three CCRB complaints and five allegations, none of which was substantiated. § 87(2)(g)
- Sgt. Hernandez has been a member of service for 16 years and has been a subject in nine cases and 18 allegations, of which one was substantiated:
 - 200907980 involved a substantiated allegation of force – nightstick as club against Sgt. Hernandez. The Board recommended charges and the NYPD imposed a forfeiture on five vacation days.
 - § 87(2)(g)
- PO Matthews has been a member of service for two years and this is the first CCRB complaint to which he has been a subject.
- PO Nesterwitz has been a member of service for three years and this is the first CCRB complaint to which he has been a subject.

Mediation, Civil and Criminal Histories

CCRB Case # 201903480

- § 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Investigator: _____

Signature _____ Print Title & Name _____ Date _____

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____